



File No.: EXP202404813

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 20, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 20, 2024, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against GOOGLE LLC (hereinafter, the respondent) for not having adequately addressed his right to erasure.

The complainant states that, on February 17, 2024, he sent an email to the respondent requesting the removal of the search results for the following links that appear from the search conducted by his name and surname:

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4
5. ***URL.5

“Reason for removal:

(1) Page containing my personal data (name and surname). It should be removed because the content is outdated and has no public relevance, under the General Data Protection Regulation of the EU. (2) Page containing my personal data (name and surname). It should be removed because the content is outdated and has no public relevance, under the General Data Protection Regulation of the EU. (3) Page containing my personal data (name and surname). It should be removed because the content is outdated and has no public relevance, under the General Data Protection Regulation of the EU. (4) Page containing my personal data (name and surname). It should be removed because the content is outdated and has no public relevance, under the General Data Protection Regulation of the EU. (5) Page containing my personal data (name and surname). It should be removed because the content is outdated and has no public relevance, under the General Data Protection Regulation of the EU.”

The respondent replied via the same channel on February 20, 2024, stating that, regarding links 2, 3, 4, and 5, “(...) According to the information we have, it appears that the URLs in question are related to matters of your professional life of considerable interest to the public. For example, information about your current or recent profession or about companies with which you have had a relationship may be of interest to consumers and users of the services or products provided by those professions or companies, or to people participating in them. Therefore, at this time we cannot remove those URLs.” Regarding URL 1, “(...) After balancing the interests and rights related to the content in question, including factors such as the continued publication of the content by a public body, Google has decided not to block it. According to the information available to it at this time, Google LLC has decided not to take action regarding these URLs. You may send your removal request directly to the webmaster of the site. The webmaster controls the site, so they can remove the content in question and block it from appearing in search engines. Please visit Google Search Help for information on how to contact a site's webmaster.”

The complainant has provided copies of the request and response emails mentioned above.

SECOND: Once the complaint was received by this Agency, it was analyzed, and through a resolution, the complaint was inadmissible based on the following arguments:

“(…) In this case, there is no evidence that the web link referred to in the request for erasure submitted to the search engine in February 2024, linked to the domain ***DOMINIO.1, is currently offered as a result when searching by the name and surname of the complainant.

If the data no longer appears on the website, but the web address remains locatable on the search engine results page, as is the case with the links linked to the domain ***DOMINIO.2, the affected parties can use the tools specifically provided by the search engine (on its help page) to request that

the content of the website be re-crawled, updating the search index and removing the content from the cache.

On the other hand, regarding the request for erasure related to two links linked to the domain boe.es, whose content is the appointment of the complainant as a career civil servant, dated ***FECHA.1, it is not evident that the specific personal circumstances invoked in the request demonstrate that the rights of the affected person should prevail over the maintenance of the links by the Internet search service, considering the nature of the publication.

However, it should be noted that, in the particular case of data published at the request of public administrations, in bulletins or official gazettes on the internet, for the fulfillment of a mission carried out in the public interest or in the exercise of public powers, affected individuals may exercise the right to object before the corresponding bulletin or gazette, as the data controller, to prevent, through the robots.txt protocol, the data from being captured and displayed by search engines. In their request, they should present the reasons related to their particular situation that may prevail over the legitimate compelling reasons of the data controller.

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(...) In the present case, after analyzing the documents provided and the circumstances involved, there are no rational indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection. Therefore, in accordance with the provisions of Article 65.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights, IT IS AGREED to dismiss the complaint."

The dismissal agreement was signed by the Director of this Agency on March 26, 2024.

THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration in which he reproduces Article 93 of the LOPDGDD and expressly argues: "Based on this article of the law, web links continue to appear when I enter my name and surname in the Google search engine, as can be verified by entering my name and surname in this case. Furthermore, I am not requesting, in any case, that the web links referring to the BOE be deleted, as this would comply with what is applied in Article 93.2 of the aforementioned law. What I am requesting is that Google, when entering my name and surname in its search engine, does not provide search results related to my person and refuses to delete them from the results of that search. That is, anyone who enters my personal data (name and surname) into its search engine will be able to access personal information about me, in this case regarding my profession, without having authorized that search engine to do so. If the search results were de-indexed, the request stated in Article 93.2 of that law would be fulfilled; anyone could access the relevant BOE, and I have no objection to that, but not through entering my personal data in the search engine."

Once the corresponding Reconsideration Procedure was instructed, the Director of this Agency deemed it appropriate on June 7, 2024, because this Agency verified that, on May 28, 2024, when searching for the name and surname of the appellant in the Google search engine, the referred links from the domain ***DOMINIO.2 appeared on the results page, showing the provisional and definitive merit evaluations of the competition phase after passing the opposition phase called by Resolution of (...).

The Reconsideration was resolved, indicating that "In the present case, upon analyzing the arguments presented in the reconsideration, it has been verified that part of the information referred to in the complaint, which was not accessible through the search engine of the entity being complained about at the time the resolution was issued, is currently accessible, which must be analyzed by the General Subdirectorate of Data Inspection.

Upon analyzing the arguments presented in the reconsideration, it has been verified that part of the information referred to in the complaint, which was not accessible through the search engine of the entity being complained about at the time the resolution was issued, is currently accessible, which must be analyzed by the General Subdirectorate of Data Inspection."

FOURTH: As a consequence of the acceptance of the aforementioned Reconsideration, the present Rights Procedure was opened, transferring the documentation to the party being complained about, so that within ten working days it could present the allegations it deemed appropriate, stating, in summary, that

"First.- One of the five URLs that Mr. A.A.A. seeks to block has been the subject of another procedure before the Agency, which dismissed Mr. A.A.A.'s complaint. As stated in the administrative file, Mr. A.A.A. contacted Google LLC on February 17, 2024, to exercise a right of deletion regarding five URLs that, according to him, appeared among the results of the Google search engine when querying based on his name. By means of an email dated February 20, 2024, Google LLC duly denied his complaint. Prior to this, we must point out that one of the search results that Mr. A.A.A. seeks to block (**URL.5) has already been the subject of a procedure before this Agency with file number EXP202202000. In that procedure, the AEPD, by resolution no. R/00596/2022 of July 1, 2022, dismissed the complaint regarding the URL that Mr. A.A.A. claims. As stated in that case by the AEPD regarding the same search result: "there may be a legitimate or collective interest, as otherwise, the legal order would be broken and the public interest would be harmed; likewise, this Agency has verified that in those URLs, the full ID of the complainant is not accessed, thus complying with the seventh additional provision of the LOPDGDD. Consequently, there is no interference with the fundamental right regarding the private life of the complainant."

(...)

Second.- One of the URLs subject to Mr. A.A.A.'s complaint does not appear among the results provided by the search engine when conducting a search based on his name.

In relation to another of the URLs subject to Mr. A.A.A.'s complaint, (**URL.1), Google LLC has verified that as of today it does not even appear among the results of the Google search engine when conducting a search based on the interested party's name. The interested party has also not proven that the disputed URL appears among the results of the Google search engine when conducting a search based on his name.

(...)

Third.- The remaining three URLs of the five subject to the interested party's complaint refer to information published on institutional web pages related to his current professional life.

**URL.2

**URL.3

**URL.4

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As we have been indicating throughout the procedure, Google LLC has re-examined the search results subject to Mr. A.A.A.'s request and considers that three of the URLs subject to Mr. A.A.A.'s claim refer to information that presents public relevance and interest related to the professional life of the interested party as (...).

In particular, the search results that the interested party seeks to block refer to resolutions issued at various stages of the procedure by which the interested party obtained his position in the Body: (i) the final assessment of merits obtained by the candidates admitted in that same competition; and (ii) the Resolution of **DATE.1, from the Secretary of State for Public Function, which includes the list of personnel appointed as career civil servants in the referenced competitions, in which Mr. A.A.A.'s appointment as a career civil servant is published in the (...). The resolutions date from (...) and (...), and were published in accordance with the applicable regulations on the digital platforms (...) and the Official State Gazette.

The public relevance of the information in question explains why the authorities have published it on the platform (...) or in the Official State Gazette, in accordance with the legally established procedure, so that it is accessible without restrictions and can also be located through search engines like Google. Indeed, institutional websites play a crucial role in keeping society informed about matters that public

authorities consider to be of interest to citizens. In light of the decision to make the information in question accessible without restrictions, it can be concluded that the authorities have determined that its public interest must prevail over Mr. A.A.A.'s right to data protection.

The National Court has stated in its Judgment of October 25, 2022, that publications made by authorities in the exercise of their functions, on institutional websites, respond to reasons of interest and public order:

"In this case, with the personal data of the plaintiff, name and surname, access was made to the cited links which are official websites. Since it is information contained in institutional websites, its content reveals public and necessary information. The original source, in this case, is not only not subject to the consent of the interested party, but we are talking about an official publication that contains information that may require special and necessary dissemination.

[...]

The duty of publicity of judicial resolutions on the corresponding official pages, as they require the necessary dissemination of the same without any type of restrictions, is an assessment that corresponds to the sentencing court. It is true that a right to personal data protection is being exercised, but it is a right that, due to its non-absolute nature, yields in certain situations. The collision between informing about a civil judgment, relevant, public document, and originating from a Civil Court, in this case from Colombia, and the right to the privacy of the appellant and the data protection of any citizen in Spain requires a balancing of these two rights that come into conflict. And we must highlight the relevance of the civil judgment recorded in the Google internet search engine.

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which directly leads to the two links we have just mentioned, and this relevance is motivated by the public interest that emanates from a public authority in the exercise of its functions, which, through the publication of a complete judgment, issues information that, in addition to being correct, evidences the need to provide total publicity for reasons of public order. Therefore, we understand that the dissemination of this judgment through official websites is justified by the predominant public interest, and if the appellant believes that in Colombia their own Constitutional Court recognizes the protection of citizens' privacy and considers that in this case it has been violated, they must approach the Supreme Court of that country requesting the data protection that is exercised here."

In this regard, this Agency expressed itself in the resolution issued in procedure EXP202103381:

"the origin of the publication of the personal data of the interested parties in the Official State Bulletin cannot be anything other than the establishment of a legal obligation determined by Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, specifically in the cases of its article 44, but it should be specified that the seventh additional provision of the LOPDGDD determines that 'when the publication of an administrative act containing personal data of the affected party is necessary, the same shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document.' However, this publication of personal data does not depend on the will of the interested or affected party, but is imposed by law, and therefore it is relevant when determining the possibility of further uses of such information.

Accessibility to publications on the BOE website is a consequence of the nature of the official state journal aimed at fulfilling functions of guaranteeing legal security, controlling the activity of public powers, and ensuring administrative transparency.

It is noted that the claimant has approached Google, and while this entity has responded with reasons for not attending to the exercised right of deletion, the claimant has not provided specific arguments justifying the impropriety of maintaining the information in the search results.

Therefore, it is appropriate to dismiss the claim regarding the requested deletion. However, the claimant may approach the BOE requesting that measures be taken to prevent the indexing of their data, so that when typing their name and surname, it does not redirect to that page. Likewise, they

may contact the academies referred to in the URLs.”

On the other hand, it should not be overlooked that the disputed information in the case at hand is clearly related to the current professional life of Mr. A.A.A. as a member of (...). Such a fact must undoubtedly be taken into consideration when weighing the fundamental rights at stake.

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Thus, in its Judgments of January 31, 2020 (Rec. 520/2018) and March 15, 2019 (Rec. 125/2018), the National Court concluded:

“In the case at hand, entering into the weighing of the rights and interests at play, it must be taken into account first and foremost that it refers to the professional life of the claimant, (...) and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 (Rec. 30/2016), and June 6, 2017 (Rec. 1.797/2015).”

Likewise, in the Judgment of June 6, 2017 (Rec. 1797/2015), the National Court concluded:

“(...) it must be taken into account first and foremost that it refers to professional life and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution deserves, as this Chamber and Section have pointed out in the judgment of May 11, 2017 (Rec. 30/2016).”

In this line, in its resolution issued in procedure TD/00228/2020, the AEPD declared:

“Furthermore, entering into the weighing of the interests at play, the information contained in the questioned URLs refers to the professional life of the claimant and is broadly protected by the freedom of information.

There is a distinction between private life and public or professional life of a person; therefore, the availability of information in a search result regarding the professional or public activity of a person will not warrant the de-indexing of the content if it relates to the labor life of the interested party, taking into account the nature of the work and the legitimate interest of the public in having access to the information through a search by their name.”

Impropriety of the “right to be forgotten” when the processing is necessary to exercise the right to freedom of expression and information

In this sense, the responding party states that professional data is considered of public relevance, so that it is accessible without restrictions and can also be located through search engines.

Likewise, they argue that institutional websites play a crucial role in keeping society informed about matters that public authorities consider to be of interest to citizens and that the information published should be accessible without restrictions.

Thus, they assert that the Court of Justice of the European Union (CJEU) has declared that blocking search results can impact the legitimate interest of users potentially interested in accessing the information in question, and that for this reason, search results should only be blocked after the appropriate weighing of the different rights at play, considering the nature of the information in question, the sensitive nature for the private life of the affected person, and the public interest in having this information, which may vary, for example, depending on the role the interested party plays in public life.

They indicate that the right to be forgotten is a right that finds its limit in the freedom of information. It is a right that cannot imply a retrospective censorship of information correctly published at the time, and that does not allow for the construction of a tailored past for the individuals mentioned in the information accessible on the Web.

Finally, they conclude that personal data are neither contrary to the regulations on data protection nor can they be considered inadequate, irrelevant, or excessive in relation to the purposes of processing and the time elapsed.

FIFTH: Having examined the document submitted by the responding party, it is transferred to the claimant, so that, within ten business days, they may formulate the allegations they deem appropriate,

indicating, in summary, and as far as this procedure is concerned, that the Judgment referred to by the responding party, which deals with the duty of publicity of judicial resolutions and a judgment, lacks validity in the present case.

“(…) Furthermore, they add that the information is related to my current professional life, when this information is from the year 2022 and currently (2024) I am performing my duties in another position of a different level since December 1, 2023, (…)

Moreover, the public interest they allege does not apply to the present case, as it concerns a list of candidates, where the only interested parties would be the candidates themselves participating in the process and that such notifications range from the year 2020 to 2022, so the publication has long since fulfilled the duty to notify the rest of the interested parties, due to the passage of time.

(…) in this case it is an administrative act, regulated in Law 39/2015 on the Common Administrative Procedure of Public Administrations, hereinafter LPAC, in which Article 45 LPAC addresses the notification and publication of an administrative act to a plurality of interested parties, as it is a competitive procedure, such as the call for an opposition.

(…) Personal data, in competitive selection tests, are necessary for the purpose of managing the selection tests and the necessary communications to the participating candidates during the same selection process.

In this case, said selection process ended in April 2022, so the purpose of the notification (in this case, publication to a plurality of recipients) has fulfilled its function.”

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The claimant adds that “(…) the notification of the act has fulfilled its purpose, without any excuse to comply with the provisions of Article 93 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, which includes the 'Right to be forgotten in Internet searches,' which I quote below:

Article 93.1. Every person has the right for search engines on the Internet to remove from the lists of results obtained from a search made using their name the published links that contained information relating to that person when they were inappropriate, inaccurate, irrelevant, outdated, or excessive, or have become such over time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directed is lawful and it has not been deleted beforehand or simultaneously.

Article 93.2. The exercise of the right referred to in this article shall not prevent access to the information published on the website through the use of other search criteria different from the name of the person exercising the right.”

The claimant refers to the provisions of Additional Provision 7 of the LOPDGDD regarding how the identification of the interested parties in notifications through announcements and publications of administrative acts, such as in the present case, must be carried out, which prohibits the joint use of surnames, first name, and the complete number of the official identification document of individuals.

“(…) Furthermore, I reiterate that I am not requesting, in any case, that the web links referring to the BOE be removed, as this would comply with what is applied in Article 93.2 of the aforementioned law. What I am requesting is that the Google search engine, when my name and surnames are entered into its search engine, does not return search results related to me and refuses to delete them from the results of that search. That is to say, any person who enters my personal data (name and surnames) into their search engine will be able to access personal information about me, without having authorized that search engine regarding the same. If the search results were de-indexed, it would comply with the request set forth in Article 93.2 of that law; any person would be able to access the

relevant BOE, and I have no objection, but not through entering my personal data into the search engine.”

SIXTH: After granting a hearing to the respondent party, it states, in summary, and as far as this procedure is concerned, that:

- As previously indicated, one of the URLs that the claimant intends to block, ***URL.5, has already been the subject of another procedure in this Agency and was dismissed.

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- Regarding ***URL.1 “(...) Google LLC has verified that as of today it does not even appear among the results of the Google search engine when searching using the name of the interested party. The interested party has also not demonstrated that the disputed URL appears among the results of the Google search engine when searching using their name.”

- “(...) The remaining three URLs of the five subject to the claimant's complaint refer to information published on institutional web pages related to their current professional life.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the obligations that pertain to them, as well as to address complaints submitted by an interested party and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

The opening of this procedure occurs due to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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"When the procedure exclusively refers to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the

admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to be forgotten

The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which determines, in its paragraph 1, the following:

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"1. Every person has the right to request that search engines on the Internet remove from the lists of results obtained from a search conducted using their name any links published that contain information related to that person when such information is inappropriate, inaccurate, irrelevant, outdated, or excessive, or has become such over time, taking into account the purposes for which it was collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, this should be done when the personal circumstances invoked by the affected party demonstrate the predominance of their rights over the maintenance of the links by the Internet search service. This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been previously or simultaneously deleted.

As stated in the Supreme Court Judgment of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from the respect for other fundamental rights are applicable, among which the freedom of information proclaimed by Article 20 of the Constitution is of particular relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and provides the user with a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: "(...) by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, stores on its servers, and, where appropriate, communicates and facilitates access to its users in the form of lists of results from their searches. Since these operations are explicitly and unconditionally covered by Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework and, consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d."

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Section 35: "In this regard, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that performed by website publishers, which consists of displaying such data on a webpage, and is added to it." Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the search engine without going to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (Case C-131/12), stated:

"(...) data processing (...) carried out by the operator of a search engine may significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search conducted using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that search engine, would not have been interconnected or would have been very difficult to interconnect, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which gives the information contained in such a list of results a ubiquitous character (see, in this regard, the judgment in eDate Advertising and Others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search conducted based on the name of a person links to webpages published by third parties that contain information relating to that person, even in the event that this name or this information is not deleted prior to or simultaneously from these webpages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the search engine operator allows a "name" to yield a list of results that provide information about a person that may affect their private

sphere. Once the data subject has submitted their request for erasure of their...

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personal data before the search engine, it must examine it and proceed, if applicable, to the removal of the specific links from the results list, without the need to first or simultaneously approach the website manager.

Furthermore, it is also deduced from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital oblivion," which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not protect the idea that each individual can construct a past to their liking, forcing web page editors or search engine managers to delete the processing of their personal data when associated with facts that are not considered positive.

It also does not justify that those who expose themselves publicly can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, removing negative information from the Internet, "positioning" the results of Internet searches as they wish, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country."

The doctrine collected in the judgment of the National Court, of June 21, 2019, is also relevant, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in having access to information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, an entrepreneur, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art.

18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015."

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between the private life of the...

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person and public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the individual concerned, but it will depend on the nature of the individual's work and the legitimate interest of the public in accessing that information through a search by their name (...)."

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter is of public interest, not all of its content is protected by

the freedom of information—in this case, freedom of expression—since the transmission of those facts that, within the news, affect the honor or privacy of the person concerned and are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information' may be deemed disproportionate" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. Regarding this issue, the National Court declared in its ruling dated November 8, 2017, the following: "moreover, unlike the first link, an excessive amount of time has not elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when such data is no longer necessary in relation to the purposes for which it was collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent, or are excessive in relation to these purposes and the time elapsed."

V

Conclusion

In the present case, once the documentation in the file has been examined, it is observed that after conducting a search based on the name of the claimant, dated November 5, 2024, a list of results is accessed in which four of the five questioned URLs appear, publishing information and personal data due to the publication of several resolutions that make provisional and definitive lists and appointments as officials public in a competitive examination process for entry as a public official. From this examination, the following is extracted:

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Regarding URL No. 2, it does not appear in the list of results provided by the search engine. Consequently, the claim presented regarding this URL should be dismissed.

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In relation to URLs No. 1, 3, 4, and 5, it should be noted that the origin of the publication of the personal data of the interested parties in the Official State Gazette is both the establishment of a legal obligation that is not only determined by Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

Thus, it is important to highlight that, in the present case, the personal data published of the claimant is the result of a selective process which is governed by the principle of publicity, in addition to the constitutional principles of merit, equality, and capacity. Contrary to what the claimant states, the publicity of the appointment act does not have as its sole purpose the notification of an indeterminate plurality of interested parties in a procedure, but rather it is a necessary condition to ensure respect for the aforementioned principles of equality, merit, and capacity, as pronounced by the Supreme Court in various rulings (STS 2487/2016, of November 22, 2016, STS June 24, 2021, or 388/2016 of January 21).

In this regard, both Royal Legislative Decree 5/2015, of October 30, which approves the consolidated text of the Basic Statute of Public Employees (articles 10.2, 13.2, 55, 78, and Transitional Provision Four) and Royal Decree 364/1995 of March 10, which approves the General Regulation for the Admission of Personnel to the Service of the General State Administration and the Provision of Positions and Professional Promotion of Civil Servants of the General State Administration (articles 4, 74, and 75) consider publicity as a fundamental principle that governs the selective processes and

provision of public employees.

This principle is in line with the principle of active publicity established by Article 5 of Law 19/2013, of December 9, on transparency, access to public information, and good governance, which establishes as an obligation for the subjects covered by its scope of application to publish periodically and updated information whose knowledge is relevant to guarantee the transparency of their activity related to the functioning and control of public action. Specifically, Article 6 regarding institutional, organizational, and planning information establishes that "The subjects covered by the scope of application of this title will publish information related to the functions they perform, the regulations that apply to them, as well as their organizational structure. For these purposes, they will include an updated organizational chart that identifies the responsible parties of the different bodies and their profile and professional trajectory."

It is for this reason that preventing search engines from redirecting the aforementioned published information regarding access to public employment on official pages of public relevance such as the Official State Gazette or the National Institute of Statistics would constitute a detriment to the aforementioned principle of publicity that must govern any selective process. In this sense, accessibility to publications on the BOE website is a consequence of the nature of the official state journal intended to fulfill functions of guaranteeing legal security, controlling the activity of public powers, and administrative transparency.

On the other hand, as the claimant itself states, the resolutions regarding the professional data of the claimant date back to August 2021 and March of...

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2022, dates that in terms of selective processes are still recent enough not to be considered obsolete, taking into account that the claimant still retains the status of a career civil servant with respect to that public administration.

It is noted that the claimant has approached Google and while this entity has responded with reasons for not attending to the exercised right of erasure, the claimant has not provided specific arguments justifying the impropriety of maintaining the information in the search results.

Therefore, it is appropriate to dismiss the claim regarding the erasure of the requested URLs.

However, the claimant may contact the BOE requesting that measures be taken to prevent the indexing of their data, so that typing their name and surname does not redirect to that page. Likewise, they may contact the academies referred to in the URLs.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to dismiss the present claim.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by Mr. A.A.A. against GOOGLE LLC.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the

aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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